

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT,

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG
SDSAP GLOBAL SCL ASIA PACIFIC PTE LTD., AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
THIRD PARTY RESPONDENTS.

**THIRD-PARTY RESPONDENTS'
RESPONSE IN SUPPORT OF MOTION TO WITHDRAW
THIRD-PARTY COMPLAINT**

Third-Party Respondents Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd. (“SEC”), Samsung SDS Asia Pacific Pte Ltd. s/h/a Samsung SDS Global SCL Asia Pacific Pte Ltd (“SDS”), and Samsung Electronics Logitech Co., Ltd. s/h/a Samsung Electronics Logitech Company, Limited (“Logitech”)(SEC, SDS and Logitech collectively “Third-Party Respondents”), by and through their undersigned counsel, submit this response to Respondent COSCO Shipping Lines Co., Ltd.’s (“COSCO”) Motion to Voluntarily Dismiss Counterclaim and Third-Party Complaint (“COSCO Motion”), filed on April 8, 2026.

COSCO’s Counterclaim and Third-Party Complaint should be dismissed **with prejudice**. While COSCO is correct that Third-Party Respondents are not claiming prejudice by way of the dismissal of COSCO’s improvident Third-Party Complaint, Third-Party Respondents have certainly been prejudiced by COSCO’s insistence on pursuing these meritless and wasteful legal strategies. Such strategies initially required Third-Party Respondents to engage in motion practice concerning improper service (which COSCO ultimately corrected). Thereafter, Third-Party Respondents each moved to dismiss the Third-Party Complaint. Moreover, Third-Party Respondents encouraged COSCO to withdraw its Third-Party Complaint by way of a demand letter sent on March 31, 2026. *See* March 31 Letter, attached hereto as Exhibit A.

In their March 31 Letter, Third-Party Respondents referred COSCO to the March 20, 2026 Order (“March 20 Order”), issued by Administrative Law Judge (“ALJ”) Richard C. Ambrow in *Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited v. Samsung Electronics Company, Ltd.*, in which the ALJ found OOCL’s Counterclaim and Third-Party Complaint, which were based on the same theories asserted in the

Third-Party Complaint here, to be “objectively frivolous.”¹ In the view of Third-Party Respondents, this decision provided additional compelling support for the conclusion that COSCO’s Counterclaim and Third-Party Complaint had no merit.²

Third-Party Respondents submit that granting the COSCO Motion will promote the efficient administration of this proceeding, so long as the dismissal is ordered **with prejudice**. A dismissal with prejudice is legally appropriate for dismissal of meritless claims and practically necessary to bring complete finality and prevent these claims from being advanced in the future.

Dated: April 10, 2026

Respectfully submitted,

HOHENSTEIN & PARKINSON, LLP

By: /s/ James H. Hohenstein

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Asia Pacific Pte Ltd. s/h/a Samsung SDS

Global SCL Asia Pacific Pte Ltd and

Samsung Electronics Logitech Co., Ltd. s/h/a

Samsung Electronics Logitech Company,

Limited

¹Dkt. No. 24-17, 2026 WL 794116 at *13 (ALJ March 20, 2026)(Doc. No. 126)(Order Denying Third-Party Respondent's Petition for an Award of Attorneys' Fees, Denying Complainant's Petition for Attorneys' Fees, and Denying Complainant's Motion to Supplement Its Petition for Attorney Fees).

² Third-Party Respondents note that in a filing earlier today by Samsung Electronics America, Inc. (SEA) reference was made to the OOCL ALJ’s decision becoming final as of December 29, 2025. This appears to be a scrivener’s error as the reference was to an earlier decision in the OOCL proceeding, i.e., Order Granting Complainant’s Motion to Dismiss Respondents’ Amended Counterclaim and Third-Party Respondent’s Amended Motion to Dismiss the Amended Third-Party Complaint (ALJ November 26, 2025)(Doc. No. 98) which decision indeed became administratively final on December 29, 2025 (FMC December 29, 2025)(Doc. No. 101).

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
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2. Hon. Linda S. Harris Crovella – *Administrative Law Judge*
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Dated: April 10, 2026

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Asia Pacific Pte Ltd. s/h/a Samsung SDS
Global SCL Asia Pacific Pte Ltd and
Samsung Electronics Logitech Co., Ltd. s/h/a
Samsung Electronics Logitech Company,
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**Third-Party Respondents' Response in Support of Motion to
Withdraw Third-Party Complaint**

Docket No. 24-16

Exhibit A

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Via Email

March 31, 2026

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Re: Samsung Electronics America, Inc. v. COSCO Shipping Lines Co., Ltd. v. Samsung Electronics Company, Ltd., Samsung SDS Global SCL Asia Pacific Pte Ltd and Samsung Electronics Logitech Company, Limited (FMC No. 24-16) – Withdrawal of Third-Party Complaint

Dear Counsel:

We write concerning COSCO's pending third-party complaint ("TPC") (Doc. No. 31) asserted against Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd. ("SEC"), Samsung SDS Asia Pacific Pte Ltd. s/h/a Samsung SDS Global SCL Asia Pacific Pte Ltd ("SDS"), and Samsung Electronics Logitech Co., Ltd. s/h/a Samsung Electronics Logitech Company, Limited ("Logitech") (SEC, SDS and Logitech collectively "Third-Party Respondents").

Currently *sub judice* are the respective motions to dismiss the TPC filed by SEC (Doc. No. 65), SDSAP (Doc. No. 58) and Logitech (Doc. No. 84).

We urge COSCO to withdraw the TPC immediately.

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March 31, 2026

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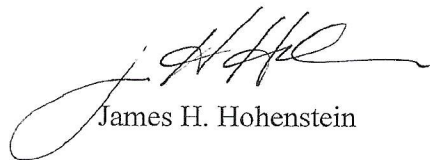
We are advised that counsel for Samsung Electronics America, Inc. ("SEA") sent a letter to you in connection with the notice of supplemental authority filed on Friday. Having now reviewed the March 27, 2026, letter, and in consultation with my clients, the Third-Party Respondents, we submit that the points made in the H&K Letter apply with equal force and impact to the TPC and thus we adopt and incorporate the H&K Letter herein.

Under the circumstances, Third-Party Respondents request that COSCO withdraw the TPC forthwith.

We further request that COSCO respond to this request by April 3, 2026.

This is an open communication and notice is provided that it will be included as evidence in future submissions to the FMC; such further submissions to include any exceptions to the Commission, petition for attorneys' fees and any other relief.

Very truly yours,



James H. Hohenstein